



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

November 8, 2021

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 201908495 regarding Police Officer Brian Hirschman, Tax No. 931734 (DADS No. 2021-23625)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and has determined that Police Officer Hirschman's actions do not warrant a Schedule "B" command discipline, but instead call for a Schedule "A" command discipline. Officer Hirschman responded to a domestic incident, and upon encountering the complainant, simultaneously stopped and questioned him in the hallway of an apartment building.

The Police Commissioner agrees with the CCRB that both the stop and the question were improper. However, based on Police Officer Hirschman's lack of substantiated CCRB history and the belief that the stop and the question were conducted in good faith, the Police Commissioner has determined that Police Officer Hirschman be issued a Schedule "A" command discipline as opposed to a Schedule "B" command discipline.

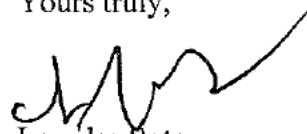
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Therefore, Police Officer Hirschman will be issued a Schedule "A" Command Discipline with the forfeiture of three (3) vacation days, in accordance with the presumptive penalty of the Disciplinary System Penalty Guidelines ("Matrix").

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', with a long, sweeping horizontal stroke extending to the right.

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office